

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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TARRAN TACNEAUX,

SUMMONS

Plaintiff,

Plaintiff resides at:
13429 166th place, Apt. 2C
Jamaica, NY 11434

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ARTHUR
McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT;
POLICE OFFICER JAMES FOWLER, SHIELD #3099
OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN
CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT,
Defendant(s),

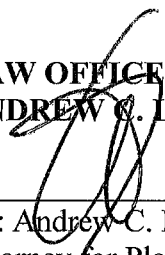
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
November 9, 2022

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
TARRAN TACNEAUX
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164
OF THE 73rd PRECINCT
1470 East New York Avenue
Brooklyn, NY

POLICE OFFICER JAMES FOWLER, SHIELD #3099
OF THE 73rd PRECINCT
1470 East New York Avenue
Brooklyn, NY

POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884
OF THE 73rd PRECINCT
1470 East New York Avenue
Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
TARRAN TACNEAUX,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ARTHUR
McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT;
POLICE OFFICER JAMES FOWLER, SHIELD #3099
OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN
CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT,

Defendant(s),

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff was a resident of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That prior to the institution of this action, a notice of claim was timely and duly served upon and filed with the city on behalf of plaintiff.

5. That pursuant to Municipal Law a 50H was held on or about October 4, 2022
6. That at all time herein mentioned POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT; POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT, were employed and acting within the scope and course of their employment with the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, and under color of state law.
7. That at all times herein mentioned, all of the actions of the officers alleged herein were done within the scope and course of their employment with the New York City Police Department and under color of the state law.
8. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

9. That on or about July 18, 2021 at approximately 2:42 A.M. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT; POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds thereof.
10. That on or about July 18, 2021 at approximately 2:42 A.M. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but

not limited to POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT; POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT, jointly and severally in their capacity as police officers, wrongfully handcuffed, and seized the plaintiff about his person, causing him physical pain and mental suffering. At no time did defendants have legal cause to handcuff, seize or touch plaintiff or did plaintiff consent to this illegal touching nor was privileged by law.

11. That on or about July 18, 2021 at approximately 2:42 A.M., defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrest plaintiff, restrain him and his liberty.

12. The unlawful conduct of defendants was motivated and instigated by other than lawful reasons and without probable cause.

13. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the defendant police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

14. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

15. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

16. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

17. As a result of the aforementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

18. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said plaintiff's rights.

19. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

20. The aforementioned described constitutional violations are all actionable under and pursuant to 42 U.S.C. Section 1983, 1988 and New York City and New York State Law.

FIRST CAUSE OF ACTION – VIOLATIONS OF PLAINTIFF'S CONSTITUTIONAL RIGHTS UNDER 42 USC 1983, 1988, AND THE FOURTH, FIFTH, SIXTH EIGHTH AND FOURTEENTH AMENDMENTS, TO THE UNITED STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST AND IMPRISONMENT

21. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

22. That on or about July 18, 2021 at approximately 2:42 A.M. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT;

POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds thereof.

23. That on or about July 18, 2021 at approximately 2:42 A.M. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT; POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT, jointly and severally in their capacity as police officers, wrongfully handcuffed, and seized the plaintiff about his person, causing him physical pain and mental suffering. At no time did defendants have legal cause to handcuff, seize or touch plaintiff or did plaintiff consent to this illegal touching nor was privileged by law.

24. That on or about July 18, 2021 at approximately 2:42 A.M., defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrest plaintiff, restrain him and his liberty.

25. The unlawful conduct of defendants was motivated and instigated by other than lawful reasons and without probable cause.

26. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the defendant police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

27. That the CITY, its agents, servants and employees, as set forth above, intended to confine

plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

28. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

29. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

30. As a result of the aforementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

31. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said plaintiff's rights.

32. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

33. The aforementioned described constitutional violations are all actionable under and pursuant to 42 U.S.C. Section 1983, 1988 New York City and New York State Law.

**SECOND CAUSE OF ACTION – VIOLATIONS OF PLAINTIFF’S
CONSTITUTIONAL RIGHTS UNDER 42 USC 1983, 1988, AND THE FIRST,
FOURTH, FIFTH, SIXTH, EIGHTH AND FOURTEENTH AMENDMENTS, TO
THE UNITED STATES CONSTITUTION, NEW YORK CITY AND
NEW YORK STATE LAW PREDICATED UPON MALICIOUS PROSECUTION**

34. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

35. Upon information and belief, on or about July 18, 2021 at approximately 2:42 A.M. defendants deliberately and maliciously prosecuted plaintiff, an innocent man, without any probable cause whatsoever by filing or causing a criminal complaint to be filed in the Criminal court of the City of New York, County of Kings, for the purpose of falsely accusing the plaintiff of violation of the criminal laws of the State of New York.

36. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the defendants.

37. Upon information and belief, on or about July 18, 2021, defendants deliberately and maliciously prosecuted plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, County of Kings for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

38. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the defendants.

39. As a result of the aforementioned actions, including the initiation of the criminal prosecution of plaintiff without probable cause, defendants deprived plaintiff of the right, privileges and immunities secured by the Constitution and laws of the United States of American and the Fourteenth Amendment.

40. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizure secured by the Constitution and Laws of the United States and the Fourth and Fourteenth Amendments.

41. As a result of the aforementioned actions defendants deprived plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and Fifth and Fourteenth Amendments.

42. The aforementioned acts of defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

43. Plaintiff suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

44. The aforementioned constitutional violations are all actionable under and pursuant to 42 USC Sections 1983, 1988 and under New York State Law.

**THIRD CAUSE OF ACTION – FOR NEGLIGENT HIRING, TRAINING, RETENTION
AND SUPERVISION**

45. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

46. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the CITY in the hiring, retention and training of its employees, including POLICE OFFICER ARTHUR McCARTHY, SHIELD #2164 OF THE 73rd PRECINCT; POLICE OFFICER JAMES FOWLER, SHIELD #3099 OF THE 73rd PRECINCT AND POLICE OFFICER JUSTIN CABALLORO SHIELD # 30884 OF THE 73rd PRECINCT all of the 25th Precinct, causing the plaintiff to be falsely arrested and imprisoned without justifiable reason or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

FOURTH CAUSE OF ACTION – MONELL VIOLATION

47. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

48. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and the United States of America and of the State of New York, and his rights pursuant to 42 USC sec. 1983 by those who under color of a statute or regulation of a state, caused plaintiff to be so deprived.

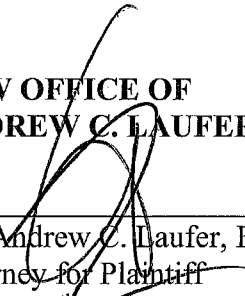
49. That the aforesaid actions by the defendants, their agents, servants and/or employees were done pursuant to an official municipal policy or custom of the city, which policy involved the deliberate indifference to the health, safety, and welfare of the plaintiff, and for the purpose of thwarting the fair administration of justice in violation of the 4th, 5th Amendments to the United States Constitution.

50. That defendants herein, their agents, servants and/or employees motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of his federal civil and constitution rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

Dated: New York, New York
November 9, 2022

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff

264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

STATE OF NEW YORK)
) ss.
COUNTY OF NEW YORK)

ANDREW C. LAUFER, ESQ., an attorney duly admitted to practice law in the State of New York, affirms under penalties of perjury as follows:

That I am the attorney of record for the plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within Summons and Verified Complaint and know the contents thereof to be true to your affirment's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirment bases his belief regarding those matters upon the contents of the file and conversations with the plaintiff.

This verification is made by your affirrant and not by plaintiff for the following reason:

plaintiff resides outside the County in which your affirrant maintains his office.

DATED: New York, New York
November 9, 2022

ANDREW C. LAUFER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index:

Year:

TARRAN TACNEAUX,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ARTHUR
McCARTHY, SHIELD #2164 OF THE 73RD PRECINCT;
POLICE OFFICER JAMES FOWLER, SHIELD #3099
OF THE 73RD PRECINCT AND POLICE OFFICER JUSTIN
CABALLORO SHIELD #30884 OF THE 73RD PRECINCT, Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer